

Tentative Rulings for May 12, 2026
Department 501

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 501

Begin at the next page

(34)

Tentative Ruling

Re: ***Burruss v. Silva, et al.***
Superior Court Case No. 25CECG01870

Hearing Date: May 12, 2026 (Dept. 501)

Motion: by Plaintiff for Trial Preference

Tentative Ruling:

To grant. The trial shall be set within 120 days of the hearing date for the present motion. The parties are directed to appear, prepared to discuss dates for trial.

Explanation:

Under Code of Civil Procedure section 36, subdivision (a),

A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

- (1) The party has a substantial interest in the action as a whole.
- (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

(Code Civ. Proc., § 36, subd. (a).)

“Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party.” (Code Civ. Proc., § 36, subd. (f).)

Assuming the elements of the statute are met and there has not been untoward delay by the plaintiff or other extenuating circumstance, this is a mandatory preference. (*Landry v. Berryessa Union School Dist.* (1995) 39 Cal.App.4th 691, 696–697.) “Mere inconvenience to the court or to other litigants is irrelevant. Failure to complete discovery or other pretrial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36. The trial court has no power to balance the differing interests of opposing litigants in applying the provision. The express legislative mandate for trial preference is a substantive public policy concern which supersedes such considerations.” (*Swaithes v. Superior Court* (1989) 212 Cal.App.3d 1082, 1085-1086, internal citations omitted.)

Moreover, “An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. The affidavit is not admissible for any purpose other than a motion for preference under subdivision (a) of Section 36.” (Code Civ. Proc., § 36.5.)

“The standard under subdivision (a), unlike under subdivision (d), which is more specific and more rigorous, includes no requirement of a doctor's declaration. To the contrary, a motion under subdivision (a) may be supported by nothing more than an attorney's declaration ‘based upon information and belief as to the medical diagnosis and prognosis of any party.’” (Fox v. Superior Court (2018) 21 Cal.App.5th 529, 534, internal citations omitted.)

Also, a plaintiff moving for a trial preference under subdivision (a) does not have to show that he is likely to die or become incapacitated before the case goes to trial if a preference is not granted. “Section 36, subdivision (a), says nothing about ‘death or incapacity.’ Whether there is ‘substantial medical doubt of survival ... beyond six months’ is, to be sure, a matter of specific concern under subdivision (d), but the relevant standard under subdivision (a) is more open-ended. The issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that he might as well be absent when trial is called. Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party's ‘health ... is such that a preference is necessary to prevent prejudicing [their] interest in the litigation.’ (Italics added.)” (Ibid.)

Here, plaintiff moves for a preferential trial date under Code of Civil Procedure section 36, subdivision (a), supported by the declaration of himself and his primary care physician attesting to plaintiff's age of 75 and his diagnosis of congestive heart failure and years long history of cardiac procedures. Dr. Gonzales' opinion is that plaintiff's medical history and high cardiac risk create a “substantial and continuing medical risk that further delay in the resolution of this lawsuit would prejudice Mr. Burruss's ability to participate in and prosecute his claim.” (Gonzales Decl., ¶ 8.)

The moving party has demonstrated that the elements of Code of Civil Procedure section 36, subdivision (a), are met.

Defendants oppose the motion arguing they would be prejudiced in their defense of a complex injury claim, fears of plaintiff's health deteriorating or passing away before recovering damages are not a basis for relief, and plaintiff's own delay in filing his Complaint for injuries that occurred in August 2023 is to blame for his argued prejudiced ability to prosecute his claim. Defendants' arguments fail to negate the evidence that plaintiff's age and health qualify him for *mandatory* trial preference.

Defendants propose additional time to reduce the claimed prejudicial impact on their ability to defend the case. Defendants provide no authority to support the request. Moreover, the request and argument that they will be prejudiced overlooks that the court does not weigh the parties competing interests in determining whether a moving party is entitled to *mandatory* preference.

Defendants additionally challenge plaintiff's arguments that his interests in the litigation are prejudiced by asserting the delay between the accident and filing the Complaint undermines his argument. The court disagrees. The decision to file a lawsuit immediately following an accident or after a party better ascertains their damages is one of legal strategy. Plaintiff's motion is supported by his primary care physician's attestations as to a lengthy history of cardiac problems continuing to worsen with time. This is sufficient to demonstrate preference is necessary to prevent prejudicing plaintiff's interest in the litigation.

Therefore, the motion is granted. Trial must be set to start 120 days from the order granting preference. (Code Civ. Proc., § 36, subd. (f).)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT **on** 5/11/2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***In re: The Matter of Beau Krogen***
Superior Court Case No. 26CU00322

Hearing Date: May 12, 2026 (Dept. 501)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To grant. Petitioner is directed to file new proposed orders within five days of service of the order by the clerk. No appearances necessary.

To set a status conference for Wednesday, August 19, 2026, at 3:30 p.m. in **Department 403**, for confirmation of deposit of the funds into a blocked account. If the Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account (MC-356), at least five court days before the hearing, the status conference will come off calendar.

Explanation:

The Petition appears to be sufficiently stated. However, the proposed order approving the compromise has the following issues. As to Item 2, petitioner is referred to as the minor's guardian ad litem and custodian. No such appointment has been ordered in connection with this Petition. As to Item 6, a selection must be made, and gross settlement amount reported. As to Item 8(b)(1), an amount should be reported. As to Item 9(a), the financial institution identified in the Petition should be reported.

Further, the proposed order to deposit funds needs attention at Item 4.

As to both orders, the hearing date should be specified.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT **on** 5/11/2026.
(Judge's initials) (Date)

(03)

Tentative Ruling

Re: ***Zart Transmission, Inc. v. Leavitt***
Case No. 20CECG01307

Hearing Date: May 12, 2026 (Dept. 501)

Motion: by Cross-Complainants/Cross-Defendants Strong Holdings, Inc., and Jared Ennis for Judgment on the Pleadings

Tentative Ruling:

The court intends to treat the motion for judgment on the pleadings as a motion to strike the First Amended Complaint as a false and improperly filed pleading, and to grant the motion to strike the First Amended Complaint without leave to amend.

Explanation:

The court cannot grant the motion for judgment on the pleadings (JOP), as cross-complainants/cross-defendants have not shown that the First Amended Complaint (FAC) fails to state valid causes of action. However, the court intends to treat the motion for JOP as a motion to strike the First Amended Complaint and to strike the FAC on its own motion, as it appears that plaintiff Zart Transmission, Inc., is not a legal entity capable of filing and maintaining a legal action.

Under Code of Civil Procedure section 438, subdivision (b), “[a] party may move for judgment on the pleadings.” “The motion provided for in this section may only be made on one of the following grounds: ... If the moving party is a defendant, that either of the following conditions exist: (i) The court has no jurisdiction of the subject of the cause of action alleged in the complaint. (ii) The complaint does not state facts sufficient to constitute a cause of action against that defendant.” (Code Civ. Proc., § 438, subd. (c)(1)(B)(i), (ii), para. breaks omitted.)

Here, cross-complainants/cross-defendants Strong Holdings, Inc., and Jared Ennis move for judgment on the pleadings on the ground that the FAC fails to state facts sufficient to state a cause of action because Zart Transmission, Inc., is not a valid corporation capable of filing and maintaining a legal action. They allege that they searched the California Secretary of State's website and were unable to locate any entity called “Zart Transmission, Inc.” (Request for Judicial Notice, Exh. A. The court intends to take judicial notice of the fact that there is no entity called “Zart Transmission, Inc.” listed as a corporation on the California Secretary of State's website.) Therefore, they contend that the FAC fails to state any valid causes of action, as it has not been brought by a valid legal entity. Furthermore, they contend that the statute of limitations has long since run on any claims that any plaintiff might bring related to the contractual relationship, so they conclude that there is no chance that the FAC could be amended to state a valid claim. As a result, they ask the court to grant the motion for judgment on the pleadings without leave to amend.

However, the moving parties have failed to show that the FAC does not state any valid causes of action. They do not contend that plaintiff has not alleged facts sufficient to state valid claims for breach of contract, breach of the implied covenant of good faith and fair dealing, and interference with prospective economic advantage. In fact, they do not discuss the elements of the various causes of action or what facts plaintiff has alleged to support the claims. Therefore, they have not shown that the FAC fails to state facts to support any valid causes of action.

Instead, the moving parties argue that there is no legal entity named "Zart Transmission, Inc.", and thus the named plaintiff has no legal right to bring the present action. However, this argument relates to the legal capacity or standing of the purported plaintiff rather than any alleged failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) Nor do they make any effort to argue that the court lacks jurisdiction over the subject matter of the action. (Code Civ. Proc., § 438, subd. (c)(1)(B)(i).) Lack of subject matter jurisdiction and failure to state facts sufficient to constitute a claim are the only two bases for a motion for judgment on the pleadings by a defendant. (Code Civ. Proc., § 438, subd. (c)(1).) As a result, the moving parties have not met their burden of showing that they are entitled to judgment on the pleadings.

On the other hand, it does appear that Zart Transmission, Inc., is not a valid entity and therefore it cannot bring or maintain a legal action. A corporation whose powers have been suspended cannot maintain an action. (*Keir Corp. v. Treasure Oil Co.* (1943) 57 Cal.App.2d 829, 838.) Here, a search of the California Secretary of State's website shows that there is no corporation called "Zart Transmission, Inc." (See Request for Judicial Notice, Exh. A.) Apparently, plaintiff's counsel did register a corporation with a similar name, "Zart Transmissions, Inc." on March 9, 2026. (*Ibid.*) However, that corporation has a differently spelled name than the purported plaintiff in the present case. It was also registered in March 2026, almost six years after the initial Complaint was filed in this case. Thus, the registration of the new corporation does not cure the defect in the Complaint here, as "Zart Transmissions, Inc." did not exist when the case was filed.

Therefore, it does appear that the present case has been improperly filed, and thus it is subject to being stricken and dismissed, as the purported plaintiff is not a valid legal entity and lacks the capacity to sue. As a result, the court intends to treat the motion for judgment on the pleadings as a motion to strike the action due to plaintiff's lack of legal capacity to sue, and grant the motion to strike the First Amended Complaint. (See Code Civ. Proc., § 436 [court may, at any time in its discretion, strike any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court].) Moreover, the court intends to deny leave to amend, as it does not appear that plaintiff can cure the defect in the pleading given its lack of legal capacity and the fact that the statute of limitations has long since run on all of the causes of action alleged in the FAC.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

(41)

Tentative Ruling

Re: ***City of Selma, a municipal corporation v. Fernando Santillan***
Superior Court Case No. 25CECG05076

Hearing Date: May 12, 2026 (Dept. 501)

Motion: by Defendant to Strike (Anti-SLAPP) Plaintiff's Complaint
by Defendant Demurring to Plaintiff's Complaint

Tentative Ruling:

To grant the special motion by defendant Fernando Santillan (Santillan) to strike the Complaint for Declaratory Relief filed by plaintiff City of Selma (Selma), without prejudice to Selma raising the claims in a previously-filed action by Santillan in this court (Case No. 25CECG04748).

To find the demurrer moot in light of the special motion to strike.

Santillan is directed to submit to this court, within seven days of service of the minute order, a proposed judgment consistent with the court's order dismissing this action.

Explanation:

Santillan filed a demurrer and a special motion to strike (anti-SLAPP) Selma's Complaint for Declaratory Relief (Complaint), which contains a single cause of action for declaratory relief.

Anti-SLAPP (Special Motion to Strike)

A special motion to strike or anti-SLAPP motion (Strategic Litigation Against Public Participation) provides a procedural remedy to dismiss nonmeritorious litigation brought "primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for redress of grievances." (Code Civ. Proc., § 425.16, subd. (a).)

The anti-SLAPP statute permits a defendant whose free speech rights or the right to petition have been infringed to move the court to strike the SLAPP suit. The anti-SLAPP statute may be invoked to challenge suits based on four different categories of speech:

- (1) statements made before a legislative, executive, judicial, or other official proceeding;
- (2) statements made in connection with an issue being considered by a legislative, executive, or judicial body;
- (3) statements made in a public forum or in connection with an issue of public interest; or
- (4) any other conduct in furtherance of the exercise of the constitutional right of petition or free speech, in connection with an issue of public interest.

(Code Civ. Proc., § 425.16, subd. (e).) Categories (1) and (2) are not limited to issues of public interest, while categories (3) and (4) are limited to issues of public interest. (*Ibid.*)

The California Supreme Court has established a two-step process to litigate an anti-SLAPP motion:

First, the moving defendant bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged. Second, for each claim that does arise from protected activity, the plaintiff must show the claim has at least minimal merit. If the plaintiff cannot make this showing, the court will strike the claim.

(*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009, internal quotation marks and citations omitted.) The anti-SLAPP statute is to be broadly construed. (Code Civ. Proc., § 425.16, subd. (a).) "The anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, *meritless* claims arising from protected activity." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384, italics original (*Baral*) [holding court may strike portions of a "mixed" cause of action arising from protected and unprotected activities].)

First Prong—Threshold Burden

The first prong requires the moving party to make a prima facie showing that the cause of action arises from constitutionally protected free speech or petition activity. Several cases have determined that the anti-SLAPP statute protects litigation settlements:

A settlement agreement executed in the context of active litigation is "made in connection with an issue under consideration or review by a ... judicial body." (Code Civ. Proc., § 425.16, subd. (e); *Navellier v. Sletten* (2002) 29 Cal.4th 82, 85–86, 87 (*Navellier*) [finding defendant's negotiations and execution of release to be protected activity]; *Seltzer v. Barnes* (2010) 182 Cal.App.4th 953, 958, 963–967 (*Seltzer*) [reversing denial of anti-SLAPP motion in homeowner's action for fraud in connection with settlement negotiations in underlying lawsuit]; *GeneThera, Inc. v. Troy & Gould Professional Corp.* (2009) 171 Cal.App.4th 901, 908 [affirming grant of anti-SLAPP motion in lawsuit based on firm's communication of settlement offer]; *Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, 1420 [attorney's negotiation of stipulated settlement in unlawful detainer action was protected conduct]; see also *Monster Energy Co. v. Schechter* (2019) 7 Cal.5th 781, 788–789 ["It is undisputed that defendants met their first-step showing" that allegedly breached settlement agreement involved protected activity].)

(*O&C Creditors Group, LLC v. Stephens & Stephens XII, LLC* (2019) 42 Cal.App.5th 546, 566–567 [listing cases holding litigation settlements covered by anti-SLAPP statute].)

In its Complaint, Selma seeks to invalidate three agreements that Selma describes as follows: (1) a Revised Employment Agreement that greatly enhances Santillan's compensation as City Manager, purportedly attached as exhibit A,¹ approved by a 3-2 vote of the Selma City Council on February 6, 2023; (2) a Settlement and General Release Agreement (Settlement Agreement) between Santillan and Selma approved by the Selma City Council on a 3-2 vote on May 20, 2024, that resolves complaints against Selma made by Santillan with two state agencies—the California Civil Rights Department (Case No. 202210-18408001) and the California Labor Commissioner Retaliation Unit (State Case No. RCI-CM-961783)²; and (3) an Addendum to the Revised Employment Agreement (Addendum), approved on November 18, 2024, by Minute Order issued on a 3-2 vote, by the Selma City Council, purportedly in accordance with the terms of the Settlement Agreement.³

Santillan argues that Selma's Complaint "is based, at least in part, on [Santillan] pursuing and resolving the employment related claims [Santillan] brought against [Selma]." (Memo., p. 1:18-19.) Santillan contends the Complaint "at paragraphs 13, 21, 23, 24, and 25 must be stricken to the extent they are based upon [Santillan's] statements made during the proceeding and settlement of the [administrative agency] matters[.]" (*Id.*, at p. 2:1-3.)

Selma concedes the filing of Santillan's two administrative complaints and the making of the Settlement Agreement are protected by the anti-SLAPP statute. (Opp., p. 6:20-21.) The court finds Santillan makes a prima facie showing that the challenged paragraphs arise, at least in part, from protected activity.

Second Prong—Probability of Success on the Merits

Because the court finds Santillan makes a prima facie showing that the gravamen of the Complaint arises from protected activity, the burden shifts to Selma to proffer sufficient evidence to establish the probability of prevailing on its claims. (Code Civ. Proc., § 425.16, subd. (b)(1). To satisfy its burden, Selma may not merely rely on the allegations in the Complaint or evidence that would be inadmissible at trial. (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546 [reversing trial court's order denying anti-SLAPP motion to strike plaintiffs' declaratory relief cause of action].)

In *Baral*, the California Supreme Court restated the required analysis for the second prong when the moving party challenges part of a pleading:

For the benefit of litigants and courts involved in this sometimes difficult area of pretrial procedure, we provide a brief summary of the showings and findings required by section 425.16(b). At the first step, the moving defendant bears the burden of identifying all allegations of protected

¹ In fact, exhibit A is a copy of the original employment agreement dated December 6, 2021.

² An unsigned and undated copy of the Settlement Agreement is attached to the Complaint as exhibit B. Selma alleges, on information and belief, that an executed Settlement Agreement was purged from the City's records. (Comp., ¶ 11.)

³ The Addendum is described in the Complaint, but not attached. The resolution repealing the Addendum's approval is attached to the Complaint as exhibit C.

activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. The court, without resolving evidentiary conflicts, must determine whether the plaintiff's showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment. If not, the claim is stricken. Allegations of protected activity supporting the stricken claim are eliminated from the complaint, unless they also support a distinct claim on which the plaintiff has shown a probability of prevailing.

(*Baral, supra*, 1 Cal.5th at p. 396.)

Here, the Complaint contains a single cause of action for declaratory relief. Code of Civil Procedure section 1060 authorizes declaratory relief causes of action. That section provides:

Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, or with respect to the location of the natural channel of a watercourse, may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract. He or she may ask for a declaration of rights or duties, either alone or with other relief; and the court may make a binding declaration of these rights or duties, whether or not further relief is or could be claimed at the time. The declaration may be either affirmative or negative in form and effect, and the declaration shall have the force of a final judgment. The declaration may be had before there has been any breach of the obligation in respect to which said declaration is sought."

(Code Civ. Proc., § 1060.)

Declaratory relief is not available to redress past wrongs. (*Lee v. Silveira, supra*, 6 Cal.App.5th at p. 549.) Declaratory relief must address future rights:

Declaratory relief operates prospectively to declare future rights, rather than to redress past wrongs. [Citation.] Where . . . a party has a fully matured cause of action for money, the party must seek the remedy of damages, and not pursue a declaratory relief claim.

(*Canova v. Trustees of Imperial Irrigation Dist. Employee Pension Plan* (2007) 150 Cal.App.4th 1487, 1497 (*Canova*) [declaratory relief unavailable to invalidate changes made to retirement plan].) Selma's cause of action for declaratory relief seeks to "void"

the Revised Employment Agreement, Settlement Agreement and Addendum, and obtain an "award" of all compensation Selma has paid under each contract. (Comp., p. 10:21-26.) Declaratory relief is unavailable to redress these past wrongs.

Furthermore, a court may refuse to grant declaratory relief if it determines that such relief "is not necessary or proper at the time under all the circumstances." (Code Civ. Proc., § 1061.) The court takes judicial notice of the pleadings in a prior action pending between the same parties addressing the same documents, entitled *Fernando Santillan v. City of Selma*, Superior Court Case Number 25CECG04748 (Prior Action), filed in this court on October 8, 2025, by Santillan as the plaintiff and Selma as the defendant. Selma may pursue the relief it seeks in the Prior Action. Therefore, declaratory relief is unnecessary.

In sum, Selma seeks redress of alleged past wrongs in its Complaint. But declaratory relief is unavailable for such purposes. (*Lee v. Silveira, supra*, 6 Cal.App.5th at p. 549; *Canova, supra*, 150 Cal.App.4th at p. 1497.) Nor is declaratory relief necessary. The court concludes Selma cannot show a probability that it will prevail on its claims for declaratory relief.

Conclusion

In summary, the court finds Santillan meets his burden to show the Complaint arises from protected activity. The burden then shifts to Selma to demonstrate a likelihood of prevailing on its claims for declaratory relief, which it cannot do. Therefore, the court grants Santillan's anti-SLAPP motion and strikes the Complaint, without prejudice to Selma asserting its claims in the Prior Action.

Demurrer

In light of the above, the court need not reach the merits of the demurrer.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT **on** 5/11/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Arambula-Garcia v. Servellon et al.***
Superior Court Case No. 23CECG04857

Hearing Date: May 12, 2026 (Dept. 501)

Motion: Petition to Compromise Claim

Tentative Ruling:

To deny, without prejudice. In the event that argument is requested, both petitioner Blanca Marisela Arambula-Garcia and plaintiff Francisco Arambula Velazquez are excused from appearing.

Explanation:

Petitioner Blanca Marisela Arambula-Garcia ("petitioner") seeks an order compromising the claim of plaintiff Francisco Arambula Velazquez.

Upon review of the Petition, it appears that petitioner seeks to establish a court-supervised special needs trust. (Attachment 10c, Attachment 18(b)(4).) The purpose of the trust appears to be to enable future public assistance. This court in a civil proceeding will not retain jurisdiction of such trust supervision. Accordingly, petitioner must show that she has first filed with the Probate Division to establish the supervised trust to comply with California Rules of Court, rule 7.903. The Probate Division provides the requisite ongoing court supervision of the trust. Once there is an approved probate petition, petitioner may refile for approval to fund the trusts through an order of compromise of claim in this civil matter.

For the above reasons, the Petition is denied, but without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT on 5/11/2026.
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: ***Wheeler v. Spane et al.***
Superior Court Case No. 25CECG02378

Hearing Date: May 12, 2026 (Dept. 501)

Motions: by Plaintiffs to Compel Further Discovery Responses From
Defendant Jessica Felmus

by Plaintiffs to Compel Further Discovery Responses From
Defendants Mike and Holly MacNeill

Tentative Ruling:

To deny the motion to compel further responses from Jessica Felmus as untimely.
To deny all requests for sanctions in connection with this motion.

Explanation:

In one motion, plaintiffs move to compel further responses from Felmus to Form Interrogatories, Set One, Request for Admission, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One.

A notice of motion to compel must be filed and served within 45 days after verified responses, or any verified supplemental responses, were served, unless the parties agree in writing to extend the time. (Code Civ. Proc., § 2030.300, subd. (c)⁴.) Failure to file the motion within the 45-day time limit waives the right to *compel a further response*. (Code Civ. Proc., § 2030.300, subd. (c); see *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.)

Felmus served responses to the discovery on 9/5/2025. Defendant Jeffrey Kertson filed an anti-SLAPP motion on 9/23/2025, resulting in a discovery stay from 9/23/2025⁵ to 11/19/2025. Eighteen days passed from Felmus' service of discovery responses to the stay on 9/23. That left 29 days after the discovery stay lifted (adding two days to the 45-day limit due to electronic service of the responses) to file a motion, or a deadline of 12/18/2025. Plaintiffs did not file their pretrial discovery conference request until 12/26/2025, and the motion filing deadline had already passed at that point. Plaintiffs filed the instant motion to compel on 1/9/2026.

In their reply brief, plaintiffs argue that the motion is timely because (1) there was an agreement with Felmus to extend time to file the motion, and (2) Felmus' service of supplemental responses re-set the 45 day time limit as to all discovery issues raised in the motion.

⁴ The deadline is the same for other types of written discovery.

⁵ It is unclear why plaintiffs claim that the start of the discovery stay was 9/25/2025.

Plaintiffs rely on provisions in Code of Civil Procedure sections 2030.300, subdivision (c) and 2031.310, subdivision (c), which require a propounding party to file and serve a motion to compel for responses to interrogatories and requests for production, respectively, "within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing[.]" (Code Civ. Proc., §§ 2030.300, 24 subd. (c), 2031.310, subd. (c).)

Plaintiffs impliedly contend that because on 12/17/2025 Felmus served supplemental responses to interrogatories, that resets the motion to compel deadline as to all sets of discovery raised in the motion. (See Reply 1:24-25.) The court does not agree.

First, plaintiffs neglect to mention that Felmus only supplemented responses to Form Interrogatory No. 17.1 and Special Interrogatory No. 15. Plaintiffs' motion to compel does not challenge or address the two interrogatories that were supplemented. The motion is solely directed at the responses served by Felmus on 9/5/2025. The court reads the language "or any supplemental verified response" to apply only to the specific discovery supplemented. Second, there was no supplement to the Request for Admission or Request for Production of Documents. There is no showing that supplementation of other discovery requests extends the motion deadline as to discovery responses that were not supplemented.

As for the assertion that there was an extension of time to file the motion, Felmus explicitly states that there was no such agreement. (See Felmus Decl., ¶ 15.) Plaintiffs' counsel states under penalty of perjury, "On December 4, 2025, Plaintiffs' counsel and Felmus met and conferred, whereby **the parties agreed** that by December 17, 2025, Felmus would provide supplemental responses to Special Interrogatory No. 15, and Form Interrogatory No. 17.1, **and that the time to file a Motion to Compel would be extended by two (2) weeks.**" (Christofferson Decl., ¶ 9, emphasis added.) The referenced agreement is attached as Exhibit E to the declaration. Exhibit E is a 12/5/25 email from attorney Rachel Alstrom to Felmus stating,

Good morning Ms. Felmus,

I apologize for not mentioning this last night, but it is our understanding that, given our willingness to provide you more time to produce supplemental responses, our timeframe to file a Motion to Compel is extended as well. So, since your supplemental responses are due December 17, 2025, we have two (2) weeks past that production date-December 31, 2025- to file a Motion to Compel, should one be necessary.

Please indicate whether you agree to the Motion to Compel deadline extension, and reach out if you have any questions.

Thank you,

Rachel Alstrom, Esq.

(Christofferson Decl., Exh. E, emphasis added.)

Exhibit E includes no response from Felmus to the email. Counsel's email can be read as no more than a request for an extension of time. Clearly there was no written agreement extending the deadline for plaintiffs to file their motion. A unilateral wishful

understanding is not an agreement in writing. Plaintiffs' counsel's representation that there was an agreement appears to be an outright misrepresentation of fact.

Because there was no written agreement extending the time to file a motion to compel as to any discovery request at issue, and the motion only concerns responses that were not supplemented, the motion directed at Felmus is denied as untimely.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT **on** 5/11/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***A.W. Albany v. Blonder et al.***
Superior Court Case No. 24CECG04547

Hearing Date: May 12, 2026 (Dept. 501)

Motion: Motion to Compel Discovery Responses

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT on 5/11/2026.
(Judge's initials) (Date)